



SPONSOR: Sen. Sturgeon & Rep. Romer & Rep. Snyder-Hall &
Rep. Morrison
Sens. Lockman, Pinkney, Sokola; Reps. Gorman, Neal

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 78

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO DISCRIMINATION.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Subchapter II, Chapter 1, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 136. Prohibition on discrimination.

(a) For purposes of this section:

(1) "School" means a public school, including school districts and charter schools.

(2) The following terms mean as defined in Chapter 45 of Title 6:

a. Disability.

b. Gender identity.

c. Protective hairstyle.

d. Race.

e. Religion.

f. Sexual orientation.

(b) A school may not discriminate against a student based on the student's race, ethnicity, creed, color, religion, national origin, sex, sexual orientation, gender identity, protective hairstyle, body size, pregnancy or childbirth or related conditions, disability, genetic information, socioeconomic status, familial status, immigration status, or housing status.

(c) Notwithstanding subsection (b) of this section, a charter school authorized under § 506(a)(3)c. of this title may restrict student admission by gender.

Section 2. Amend § 506 of Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 506. Restrictions [For application of this section, see 83 Del. Laws, c. 316, § 3].

(a) A charter school may not do any of the following:

(4) Discriminate Except in regard to gender by a school authorized under paragraph (a)(3)c. of this section, discriminate against any student in the admissions process because of race, creed, color, sex (except in the case of a

~~same gender school~~), sex, handicap, ~~or~~ national origin, or any other basis protected under § 136 of this title, or because the student's school district of residence has a per student local expenditure lower than another student seeking admission. For the purposes of this subsection:

Section 3. Amend § 4161 of Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 4161. Definitions [For applicability of section, see 83 Del. Laws, c. 407, § 2].

For purposes of this subchapter:

(2) "Bullying" means any intentional written, electronic, verbal, or physical act against another student, a school district or charter school volunteer, or a school district or charter school employee that a reasonable person under the circumstances should know will have any of the following effects:

b. Create a hostile, threatening, humiliating, or abusive educational environment due to the pervasiveness or persistence of ~~actions or due to~~ actions, a power differential between the bully and the ~~target~~. target, the target being in any of the classes protected from discrimination under § 136 of this title, or the target's age.

Section 4. Amend § 4164 of Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 4164. School bullying awareness and prevention; criminal youth gang detection.

(b) *Prohibition of bullying.* —

(2) Each school district and charter school shall establish a policy which, at a minimum, includes the following components:

f. A requirement that each school have a procedure for the administration to promptly investigate in a timely manner and determine whether bullying has occurred, and that such procedure include investigation of such instances, including a determination of whether the target of the bullying was targeted or reports being targeted wholly or in part due to the target's race, ethnicity, age, marital status, creed, religion, color, sex, disability, sexual orientation, gender ~~identity or expression~~, identity, ~~or national origin~~. origin, or any other basis protected under § 136 of this title. This subsection does not preclude schools from identifying other reasons or criteria why a person is a target of bullying.

Section 5. The Department of Education shall update all of the Department's regulations related to non-discrimination to reflect the additional protected classes listed in § 136 of Title 14.

SYNOPSIS

This Act prohibits discrimination in public schools, including school districts and charter schools, based on race, ethnicity, creed, color, religion, national origin, sex, sexual orientation, gender identity, protective hairstyle, body size, pregnancy or childbirth or related conditions, disability, genetic information, socioeconomic status, familial status,

immigration status, or housing status. Under this Act, the Department of Education is required to update its regulations to align the protected classes therein with those in the general non-discrimination provision created by this Act.

In addition to creating this non-discrimination provision [§ 136 of Title 14], this Act also does the following:

1. Aligns the protected classes in § 506, pertaining to restrictions on charter schools, with the newly created non-discrimination provision in § 136 of Title 14.
2. Amends the definition of bullying in § 4161 of Title 14 to include written, electronic, verbal, or physical acts that target a student, a school district or charter school volunteer, or a school district or charter school employee based on the target's membership in any protected class under the newly created non-discrimination provision in § 136 of Title 14, or based on the target's age.
3. Aligns the protected classes included in paragraph (b)(2)f. of § 4164 of Title 14 with the additional protected classes included in the newly created non-discrimination provision in § 136 of Title 14.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

Author: Senator Sturgeon